

OTC MARKETS GROUP INC.

A Delaware Corporation

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Federal EIN: 13-3941069
NAICS: 523210
SIC Code: 6289

Supplemental Exhibit to:

Issuer's Quarterly Report

For the quarterly period ended March 31, 2021

ISSUER'S EQUITY SECURITIES

COMMON STOCK

Class A Common Stock
\$0.01 Par Value Per Share
14,000,000 Shares Authorized
11,767,047 Shares Outstanding as of April 30, 2021
OTCQX: OTCM

OTC Markets Group Inc. is responsible for the content of this Quarterly Report. The securities described in this document are not registered with, and the information contained in this report has not been filed with, or approved by, the U.S. Securities and Exchange Commission.

EXHIBIT 3.12

SECOND AMENDMENT TO OFFICE LEASE AGREEMENT

THIS SECOND AMENDMENT TO OFFICE LEASE AGREEMENT (this "***Amendment***") is entered into between **LHREV Washington M Street, LLC**, a Delaware limited liability company ("***Landlord***"), and **OTC Markets Group Inc.**, a Delaware corporation ("***Tenant***"), with reference to the following:

A. NW 100 M Street LLC (predecessor-in-interest to Landlord) and Tenant entered into that certain Office Lease Agreement dated February 24, 2011, and Landlord and Tenant entered into certain First Amendment to Office Lease Agreement dated effective as of May 11, 2016 (as amended, the "***Lease***"), covering approximately 4,066 rentable square feet of space on the 2nd floor (the "***Premises***") of the building located at 100 M Street, SE, Washington, D.C. (the "***Building***").

B. Landlord and Tenant now desire to further amend the Lease as set forth below. Unless otherwise expressly provided in this Amendment, capitalized terms used in this Amendment shall have the same meanings as in the Lease.

FOR GOOD AND VALUABLE CONSIDERATION, the receipt and sufficiency of which are acknowledged, the parties agree as follows:

- Second Extension Period.** The term of the Lease is extended for a period of 79 months (the "***Second Extension Period***") commencing on July 1, 2021, and expiring on January 31, 2028. Tenant acknowledges that it has no further extension or renewal rights or options under the Lease.
- Basic Rent.** Commencing on July 1, 2021 and continuing through the Second Extension Period, Tenant shall, at the time and in the manner provided in the Lease, pay to Landlord as Basic Rent for the Premises the amounts set forth in the following rent schedule, plus any applicable tax thereon:

PREMISES

<u>FROM</u>	<u>THROUGH</u>	<u>ANNUAL BASIC RENT PER RENTABLE SQUARE FOOT</u>	<u>MONTHLY BASIC RENT</u>
July 1, 2021	June 30, 2022	\$53.00	\$17,958.17 *
July 1, 2022	June 30, 2023	\$54.33	\$18,407.12
July 1, 2023	June 30, 2024	\$55.68	\$18,867.30
July 1, 2024	June 30, 2025	\$57.08	\$19,338.98
July 1, 2025	June 30, 2026	\$58.50	\$19,822.46
July 1, 2026	June 30, 2027	\$59.96	\$20,318.02
July 1, 2027	January 31, 2028	\$61.46	\$20,825.97

* Provided that no Event of Default occurs and continues beyond any applicable notice and cure period, the monthly installments of Basic Rent for the Premises shall be abated for the period commencing as of July 1, 2021 and continuing through January 31, 2022.

3. **Base Year; Tenant's Share of Increased Expenses.** Effective from and after July 1, 2022, the Base Year shall be calendar year 2022. The Base Year shall be adjusted in the manner set forth in Section 3.9 of the Lease. During the Second Extension Period, except as provided in the following sentence, Tenant shall continue to pay to Landlord, at the time and in the manner provided in the Lease, as modified by this Amendment, Tenant's Share of Increased Expenses for the Premises payable under **Article 3** of the Lease. Notwithstanding anything in the Lease or this Amendment to the contrary, provided no Event of Default occurs and continues beyond any applicable notice and cure period, Tenant's Share of Increased Expenses for the Premises shall be abated for the period commencing as of July 1, 2021 and continuing through December 31, 2021.

4. **Condition of Premises.** Tenant accepts the Premises in its "as-is" condition. Tenant acknowledges that Landlord has not undertaken to perform any modification, alteration or improvement to the Premises. Tenant hereby agrees that the Premises are in good order and satisfactory condition and that, except as otherwise expressly set forth in the Lease, there are no representations or warranties of any kind, express or implied, by Landlord regarding the Premises, Building or Property.

5. **Data Cabling.** Notwithstanding anything in **Section 16.1** of the Lease to the contrary, Tenant will not be required to remove any data cabling from the Premises upon the expiration or earlier termination of the Lease.

6. **Relocation.** As of the Effective Date, **Section 9.4** of the Lease is hereby deleted and of no further force and effect.

7. **Fitness Center.** As of the Effective Date, the Building contains a fitness center (the "***Fitness Center***"), and Landlord currently allows employees of tenants of the Building to use the Fitness Center. Accordingly, so long as the Fitness Center is maintained at the Building, which may or may not be maintained in Landlord's sole and absolute discretion, Tenant's employees shall have the right to use the Fitness Center for no monthly charge, subject to compliance with Landlord's rules, regulations and procedures for the use thereof, as may be modified by Landlord from time to time and as may require additional documentation to be executed to gain access to the Fitness Center, including, but not limited to, executing releases, waivers and/or indemnities.

8. **Roof Top.** As of the Effective Date, Landlord permits the use of the rooftop of the Building (the "***Rooftop Space***") for special events, which is reserved through the property manager on a first-come, first-served basis. So long as Landlord continues to make the Rooftop Space available for special events, which may or may not be made available in Landlord's sole and absolute discretion, Tenant shall have the right to reserve the Rooftop Space, subject to compliance with Landlord's rules, regulations and procedures for the use thereof, as may be modified by Landlord from time to time, and which may include, without limitation, entering into Landlord's form of license agreement for the use of the Rooftop Space, which may include releases, waivers and/or indemnities. If Tenant uses the Rooftop Space for a special event outside of Normal Business Hours, Tenant shall pay, at Tenant's sole cost and expense, any required overtime engineer costs associated with the event. As of the Effective Date, Landlord does not otherwise charge tenants of the Building to use the Rooftop Space.

9. **Consent.** This Amendment is subject to, and conditioned upon, any required consent or approval being unconditionally granted by Landlord's mortgagee(s). If any such consent shall be denied, or granted subject to an unacceptable condition, this Amendment shall be null and void and the Lease shall remain unchanged and in full force and effect.

10. **Broker.** Tenant represents and warrants that it has not been represented by any broker or agent in connection with the execution of this Amendment, except Savills Inc. Tenant shall indemnify, defend and hold harmless Landlord and its designated property management, construction and marketing firms, and their respective partners, members, affiliates and subsidiaries, and all of their respective officers, directors, shareholders, employees, servants, partners, members, representatives, insurers and agents from and against all claims (including costs of defense and investigation) of any other broker or agent or similar party claiming by, through or under Tenant in connection with this Amendment.

11. **OFAC List Representation.** Tenant hereby represents and warrants to Landlord that neither Tenant nor any of its officers, directors, shareholders, partners, members or affiliates is or will be an entity or person: (a) that is listed in the annex to, or is otherwise subject to the provisions of, Executive Order 13224 issued on September 24, 2001 ("***EO 13224***"); (b) whose name appears on the United States Treasury Department's Office of Foreign Assets Control ("***OFAC***") most current list of "Specially Designated National and Blocked Persons" (which list may be published from time to time in various mediums including, but not limited to, the OFAC website, <https://www.treasury.gov/ofac/downloads/sdnlist.pdf>); (c) who commits, threatens to commit or supports "terrorism," as that term is defined in EO 13224; or (d) who is otherwise affiliated with any entity or person listed above.

12. **Time of the Essence.** Time is of the essence with respect to Tenant's execution and delivery to Landlord of this Amendment. If Tenant fails to execute and deliver a signed copy of this Amendment to Landlord by 5:00 p.m. (in the city in which the Premises is located) on April 7, 2021, this Amendment shall be deemed null and void and shall have no force or effect, unless otherwise agreed in writing by Landlord. Landlord's acceptance, execution and return of this Amendment shall constitute Landlord's agreement to waive Tenant's failure to meet such deadline.

13. **Miscellaneous.** This Amendment shall become effective only upon full execution and delivery of this Amendment by Landlord and Tenant. This Amendment contains the parties' entire agreement regarding the subject matter covered by this Amendment, and supersedes all prior correspondence, negotiations, and agreements, if any, whether oral or written, between the parties concerning such subject matter. There are no contemporaneous oral agreements, and there are no representations or warranties between the parties not contained in this Amendment. Except as modified by this Amendment, the terms and provisions of the Lease shall remain in full force and effect, and the Lease, as modified by this Amendment, shall be binding upon and shall inure to the benefit of the parties hereto, their successors and permitted assigns.

[Signatures to follow]

LANDLORD AND TENANT enter into this Amendment as of the Effective Date specified below Landlord's signature.

LANDLORD:

LHREV Washington M Street, LLC,
a Delaware limited liability company



By: Aaron P. Russell
Aaron P Russell (Apr 5, 2021 17:17 CDT)

Name: Aaron P Russell

Title: vice President - Asset Management

Effective Date: April 5th, 2021

TENANT:

OTC Markets Group Inc.,
a Delaware corporation

By: Daniel Zinn

Name: Daniel Zinn

Title: General Counsel & Corporate Secretary